

Opinion of the Court

against the will of the owner.” *Id.*, at 37. And in its view, the officers had no such evidence. *Id.*, at 32–33, 37–38.

With liability resolved, the case proceeded to trial on damages. The jury awarded the partygoers a total of \$680,000 in compensatory damages. After the District Court awarded attorney’s fees, the total award was nearly \$1 million.

On appeal, a divided panel of the D. C. Circuit affirmed. On the question of probable cause, the panel majority made Peaches’ invitation “central” to its determination that the officers lacked probable cause to arrest the partygoers for unlawful entry. 765 F.3d 13, 21 (2014). The panel majority asserted that, “in the absence of any conflicting information, Peaches’ invitation vitiates the necessary element of [the partygoers’] intent to enter against the will of the lawful owner.” *Ibid.* And the panel majority determined that “there is simply no evidence in the record that [the partygoers] had any reason to think the invitation was invalid.” *Ibid.*

On the question of qualified immunity, the panel majority determined that it was “perfectly clear” that a person with “a good purpose and bona fide belief of her right to enter” lacks the necessary intent for unlawful entry. *Id.*, at 27. In other words, the officers needed “some evidence” that the partygoers “knew or should have known that they were entering against the will of the lawful owner.” *Ibid.* And here, the panel majority asserted, the officers must “have known that uncontroverted evidence of an invitation to enter the premises would vitiate probable cause for unlawful entry.” *Ibid.*

Judge Brown dissented. She concluded that summary judgment on the false-arrest claims was improper because, under the totality of the circumstances, a reasonable officer “could disbelieve [the partygoers’] claim of innocent entry” and infer that they knew or should have known that they did not have permission to be in the house. *Id.*, at 34. She also